EMPLOYMENT AGREEMENT

THIS EMPLOYMENT AGREEMENT is made at @PLOFEXE@ this @AGREEMENTDATE@ (" **EmploymentAgreement**") between **@EMPLOYERNAME@**, a Company registered under the Companies Act, 1956, and having its Registered Office at @P1EMPLOYERADD@ hereinafter referred to as the "Company" which expression shall unless repugnant to the context or meaning thereof, mean and include its successors and assigns of the One Part.

And

Mr./Ms. @EMPLOYEENAME@, aged around **@EMPLOYEEAGE@** years, residing at **@P2EMPLOYEEADD@** hereinafter referred to as the "Employee", which expression shall unless repugnant to the context or meaning thereof mean and include, his/her heirs, executors, administrators, and assigns on the Other Part.

The Company and the Employee shall hereinafter collectively be referred to as the "**Parties**" and individually as "**Party**".

WHEREAS the Company, inter alia, is in the business of providing services relating to Fund Accounting and Fund Administration and other services, the list not being exhaustive. The Company proposes to engage qualified and/or technical personnel. As such, the Company has decided to avail the services of Mr. / Ms. **@EMPLOYEENAME@** and has decided to employ him/her as **@EMPLOYEEDEISG@** for the Company on the following terms and conditions which are hereby agreed upon by the Parties.

OR

NOW IT IS AGREED BY AND BETWEEN THE PARTIES HERETO AS FOLLOWS:

1. **DEFINITIONS AND INTERPRETATION**

In this Employment Agreement:

1.1. "Affiliate" of a Company shall mean the company / partnership firm or proprietorship firm which is affiliated or is concerned with the business of the Company;

1.2. "Breach or Material Breach" is defined as a disregard, violation, abhorrence, or inaction of and to any or all clauses of this agreement, whether taken in isolation or together in terms of the intention or spirit of this agreement, language, or the clauses within as read.

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1.3. Company means and includes BASIZ INFORMATION TECHONOLGY SERVICES PVT LTD, and affiliate companies.

1.4. "Confidential Matter" means confidential information and proprietary information concerning the Company or its business or that of its client(s) or shareholders or directors of Affiliates or subsidiaries of the Company, including but not limited to trade secrets, secret information, technical processes, finances, software language codes, data processing methodology, custom developed applications, project documents, commercial offers, design documents, software package licenses, dealings and method of dealings with its customers and employees together with similar information of confidential or proprietary nature relating to its respective suppliers, employees, agents, distributors, and customers and relationships of special trust and confidence with the Company's or its clients or customers and employees or the Company's policies, patterns, trademarks, and human assets profile and the negotiations in connection therewith or any of the transactions contemplated thereby, or by reason of the performance of obligations contained hereunder, or documents and /or information regarding customers costs, profits, markets, methods, technology, know how, technical processes, formulae or plans for future development.

1.5. "Effective Date" means @DOJ@, being the date of commencement of Employee's services or the joining date of Employee with the Company or such other earlier date, if so permitted in writing by the Company.

1.6. "Gross Misconduct" shall, without being exhaustive, shall include, without limitation, acts or attempts of dishonesty, disobedience, disorderly behavior, negligence, indiscipline, embezzlement, intoxication, fraud, felony, theft, violence, drunkenness, drug abuse, sexual harassment, non-compliance of instructions of superiors, insubordination, repeated quality lapses, any act subversive of discipline, sexual harassment, or which causes damage to the Company's reputation or any other offences set out under the Indian Penal Code 1908 (as amended from time to time), absence from duty without prior approval of the management, abandoning one's post and responsibilities, and divulgence of any Confidential Information of the Company and breach of any term of this Employment Agreement including violation of any clause of Code of Conduct which is enshrined in the employee / HR manual kept at every office of the Company for verification and referred to in Clause 8 hereunder.

1.7. "Group Company" means any subsidiary or holding company of the Company or any subsidiary of any such holding company. "Subsidiary" and "holding company" shall have the same meanings respectively ascribed to them under the Companies Act, 2013 (as amended from time to time) and would be deemed to include all Affiliates and associates of the Company in the UK, Singapore, USA, and India or elsewhere in the world.

1.8. "Intellectual Property" means all intellectual property rights including but not limited to any know-how, trademark, copyright, development, formulae, utility models, tools, improvement, algorithms, works of authorship, flow charts, drawings, books, instruction manuals, records, memorandum, principles, notes, user guides in either printed or machine-readable form, new software or source code or design invention, discovery, design, ideas, concepts, service marks, any written or verbal instructions or comments development, improvement, whether or not capable of

Preview

protection by patent registered design or otherwise, applications for any of the foregoing and the right to apply for them, in any part of the world, discoveries, creations, inventions, or upon or in addition to any invention, Confidential Matter, and any research effort or endeavor in relation to any of the above mentioned rights in any country whatsoever in the world, and any copyright, in any document, letter, software or other work protectable by copyright suggested, written, created, designed, invented, conceived or acquired by the Employee or developed / created by the Employee with the other employees of the Company and accessible to the Employee during the course of this Employment Agreement while providing his/her services to the Company or its clients.

1.9. "Restricted Customer / Client" means any firm, company, or other person who, during the term of this Employment Agreement, was a direct and/or indirect customer or client, in the habit of dealing with the Company or any Group Company whether or not the Employee had contact with the aforementioned persons in the course of his association to the Company.

1.10. "Restricted Employee(s)" means any person who during the course of the employment of the employee or on the date when the Employee ceases to be employed with the Company either by way of termination of his employment by the Company under this Employment Agreement or by way of resignation by the Employee or otherwise, either directly or indirectly:

i. was employed by the Company, any Group Company or any affiliate company/ entity or on secondment with the Company at any level either as a salaried employee or contractually either in the UK, Singapore, Bahrain, Srilanka, Israel, USA or India or at any other location where the Company has a presence or may have a business;

1.11. "Restricted Business" means the businesses of the Company and/or any Group Company during the term of this Employment Agreement and on the date when the Employee ceases to be employed with the Company either by way of termination of his employment with the Company under this Employment Agreement or by way of resignation by the Employee or otherwise.

1.12. Unless the context otherwise requires, words importing one gender includes all other genders, and words importing the singular include the plural and vice versa.

1.13. Any reference to any statutory provision shall be deemed to include a reference to any statutory modification or re-enactment of it.

1.14. The clause headings do not form any part of this Employment Agreement and shall not be taken into account in its construction or interpretation.

1.15. References in this Employment Agreement to Clauses are to clauses of this Employment Agreement.

2. DESIGNATION

The designation offered to the Employee shall be that of a @EMPLOYEEDEISG@. However,

Preview

the designation of the Employee remains subject to change as per the requirements of the management at its sole discretion. While the said designation is only indicative of the position or role, the employee may be called upon to perform such duties in consonance with his/her knowledge, experience and requirement at the points of need in the company.

3. DATE OF JOINING AND PLACE OF WORK

3.1. The Employee shall join the Company not later than the date mentioned in Annexure 1. Failure to join duties by the said joining date in the absence of any specific written communication from the Company acceding to extending the period joining ,would automatically rescind this agreement. The Company shall reserve the right to change the place of joining whenever deemed necessary. The Employee is free to join the Company earlier than the Effective Date with due notice to and approval from the Company and upon such earlier joining, the same shall be construed as Effective Date. If the Employee does not report for joining on or before the Effective Date, the Company shall be entitled to rescind this Employment Agreement without any notice whatsoever.

3.2. The Employees' place of work will normally be at Chennai/ Mumbai/ Gandhinagar/ Agartala/ Indore, or at such other places where the company may have offices presently or which may be started in future and where the services of the employee is required. The Company reserves its right to transfer/ depute the employee as specified in clause 6.2 below including requiring the employee to work at the place of the customer(s)/suppliers/vendors of the company as may be required as also requiring the employee to work from home at the discretion/need of the employer and the employee shall comply with such order of transfer. It is specifically understood that it would be necessary for the employee to report for duties in person at such office / offices of the Company as assigned to him/her from time to time and the facility of "work from Home" is only an exception, granted at the discretion and in writing by the competent officer of the Company. In case of failure of the employee to report for duties at the office, despite being specifically called upon by the Company, the employee is liable to be marked absent for the day and / or such days of absence and disentitled to any pay or compensation for such day(s).

3.3. Whenever an employee is called to perform work from home, the employee shall adhere to such logging in timings as may be prescribed and shall make himself available online during the entire period of such work timings. For the purpose of working from home, it would be necessary for the employee to make necessary arrangements, at his/her own cost, suitable infrastructure at his/her residence including obtaining seamless broadband internet connectivity, laptop/desktop of configuration to suit his requirement to work from home and licenced software (other than such licenced proprietory software belonging exclusively to the company). Any failure of the employee to perform his/her normal duties from his/her home as and when called upon would disentitle the employee for remuneration/salary during such period and in addition, expose the employee for suitable disciplinary action.

3.4. The Employee's employment with the Company shall be subject to submission of photocopies of his/her certificates, latest drawn salary slip, references, and other documents as may be requested by the Company and the satisfactory verification of the same with the originals.

Preview

4. PROBATION/CONFIRMATION

4.1. The Employee shall be on probation for a period of time stated in Annexure 1, from the Effective Date ("Probation Period") during which period or such extended period of probation the Company may, in its absolute discretion, terminate the Employee's employment, for any reason without notice or cause. Taking into account the sensitive and unique nature of business of the Company, the Employee, during the initial period of engagement shall be subjected to necessary induction/training programs by an in-sourced and/or outsourced agency to train the employee to meet the requirement of the company and on which the Company will incur substantial expenses. The employee affirms that should the employee quit the company during the period of the probation, the employee shall compensate the company for an amount of Rs.50,000/- representing the induction / training / recruitment costs and which may either be recovered from the dues of the employee and / or claimed from the employee in the manner known to law

4.2. The probationary period of the employee may be extended for a further period of six months from the original conclusion of the probationary period depending on the overall performance/assessment of the employee by the employer. It is agreed that the services of the employee would continue on probation, unless and until confirmed in writing.

5. REPORTING REQUIREMENT

5.1. Unless otherwise informed in writing by the Company, the Employee shall report to his/her immediate superior from time to time, during the period of his/her employment with the Company and in the absence of the aforementioned, the Employee shall report to his/her next superior for his/her day to day operations, activities, and obligations under this Employment Agreement, which reporting line will be at the discretion of the Management.

6. DUTIES

6.1. The Employee shall carry out such duties and functions which are commensurate with his/her skill, experience and qualification. The nature of such duties, without being treated as exhaustive, as are set out in Annexure 1 hereto.

6.2. The Company shall be entitled to transfer/depute the Employee to other departments, divisions, locations of the Company or any of the Group or Associate Companies in India or abroad including the places of the customers/vendors/suppliers. Any such transfer shall not break the period of employment with the Company. The Employee must therefore, be prepared at any time to undertake duties (other than or in addition to those for which the Employee is specially engaged) at any such location (whether in India or those for which the

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Company may require of the Employee, from time to time) or work on a time schedule as may be intimated to him/her. The Employee shall be transferable to all existing as well as all future businesses that the Company or any part of its Group Companies may acquire or start. For this purpose, the Employee shall be required to maintain a passport that has a validity period longer than 6 (Six) months. The Employee shall be entrusted with additional responsibilities time and again by the Company at no additional cost. The Company may at its sole discretion (a) require the Employee to work in shifts as and when deemed necessary by the Company; and (b) change the Employee's role or responsibilities, at its sole discretion as it may consider necessary from time to time. The performance of the Employee shall be constantly reviewed by the Company during his/her employment with the Company.

7. SALARY

For the services rendered by the Employee in accordance with this Employment Agreement, the Company shall pay a gross or aggregate or proportionate amount/salary commensurate to the work performed as detailed in Annexure 1. Annual increases in compensation cannot be construed to be a matter of right and is solely dependent on the performance of the employee as assessed by his/her superior / Manager coupled with the overall performance of the company.

8. CODE OF CONDUCT

During the employment with the Company, the Employee shall be obligated and required to observe the code of conduct which is enshrined in the Employee/ HR Manual kept at every office of the Company for verification or digitally hosted on the intranet portal of the company.

9. LEAVE OF ABSENCE AND WORKING HOURS

The Employee shall be entitled to leave as per the Company's leave policy which is detailed in the employee/HR manual kept at every office of the Company for verification. The working hours of the Company shall be as intimated to him/her, from time to time, as per the discretion of the management of the Company. The employee may note that grant of leave is subject to exigencies of work and cannot be availed as a matter of right. It is hereby clarified that all leave is at the discretion of the management of the company. Hence, it is always advisable for the employee to plan his/her leave in advance in consultation with his superiors so as to ensure that the work in the company is uninterrupted.

10. CONFIDENTIALITY

The Employee, as part of this agreement, is required to enter into a confidentiality agreement with the Company which shall form part and parcel of this employee agreement.

11. RETIREMENT AND SUPERANNUATION

The age of superannuation of all Employees shall be upon attaining the age of @RETAGE@ years. For this purpose, the date of birth as specified at the time of his/her appointment is binding

Preview

and final on the employee.

12. TERMINATION / RESIGNATION

12.1. The Parties hereby agree that the employment of the Employee can be terminated by either Party, either by way of termination of his/her employment by the Company under this Employment Agreement or by way of resignation by the Employee or otherwise, at their own will by giving written notice of a minimum period as per Annexure 1. Such written notice shall be given in accordance with this Employment Agreement and shall become effective from the date accepted by the company (which shall not be unreasonably withheld other than for business efficiency reasons).

12.2. If the Employee remains absent without any information and / or due authorization for a continuous period of more than 15 days, the Company is entitled to construe that the employee is no longer interested in continuing in the services of the company and it is open to the company to remove the name of the employee from the rolls of the Company as having lost his/her lien in the services of the company; Provided however, where the employee provides such necessary documentary proof to the satisfaction of the management, that the employee, for reasons beyond his/her control was unable to give necessary information either in the form of a Registered Letter or by e-mail or by phone to his/her superior, the management may upon being satisfied, condone the absence and pass an order in writing permitting the employee to continue in the services of the Company. Subject however, the period of such absence will be treated as without pay and the employee will not be entitled to any pay / salary for such period of absence.

12.3. Upon cessation of employment with the Company that has been brought about at the instance of the employee,the Employee shall be obligated to pay an amount equivalent to the last 90 (ninety) days' emoluments received by the Employee prior to such absence as contemplated in clause 12.2 which is in the nature of liquidated damages / compensation for the sudden unauthorized absence / abscond leading to dislocation of the business of the Company and also further leading to loss of lien in services. The Employee shall be entitled to any order / communication relieving him/her from the services only upon payment of the aforesaid amount and upon satisfactory handing over of his/her pending or ongoing work to his/her superiors or to the person designated by the management of the Company. In case of fraud or gross negligence, the termination shall become effective immediately.

12.4. Notwithstanding anything contained herein, upon the employee seeking to resign from the services of the Company, the company is entitled to refuse to accept resignation or relieve the Employee during the peak season starting from January to March every year or pending completion of specific assignments in which the employee is involved, and the Company shall have the sole discretion to extend such period. Equally, it would be open to the Company, at their discretion to accept the resignation of the employee forthwith and relieve him forthwith by waiving the period of notice.

12.5. Upon the employee submitting his/her resignation from the services of the Company, the employee, unless waived in writing by the Company will be required to serve the entire period of notice and during this period, the employee is not

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entitled to adjust any such leave at credit towards the period of notice period.

12.6. Notwithstanding anything contained herein, the Company also reserves the right to publish the photograph of the employee, and stating the facts as required, in Newspapers or anywhere else whatsoever, if the Employee absconds from the Company without giving the required notice as per Clause 12.2 above OR commits any fraud or misappropriation, alerting the general public to be cautious in dealing with such persons and that in no way they represent the company as their employment has been terminated.

12.7. Notwithstanding anything herein before contained, the Company shall also be entitled to terminate the employment of the Employee under this Employment Agreement and the services of the Employee, without giving any prior Notice of termination or payment in lieu of notice, if:

i. The Employee is found guilty of Gross Misconduct or commits any criminal offence provided that, in case of misconduct alleged, he/she will be given an opportunity by the Company to show cause against such proposed termination, within 48 hours from the date on which the Company gives the Employee the show cause notice. In case of failure on part of the Employee to show cause to the satisfaction of the company within the timeline set out in this Clause, the Company is entitled to take such appropriate action in accordance with law.

ii. The Employee commits a breach of any of the terms of this Employment Agreement;

iii. Any violation by the Employee of the Company's policies regarding insider trading; this includes the employee of the company engaging in insider trading in the scrips of a restricted customer of the company whose information is dealt with by the company in the normal course of business.

iv. Any act of the Employee which involves dishonesty, industrial espionage, or moral turpitude, or theft of the Company's assets or any act of insubordination by the Employee;

v. The Employee is rendered physically/mentally incapable of attending to his/her duties;

vi. The Employee abandons his/her position;

vii. Any act or omission on the part of the Employee, whether in the course of, or in connection with, the employment or otherwise, which the Company, in its sole discretion, determines is detrimental to the business of the Company or is otherwise sufficient cause to terminate the Employee's employment.

12.8. The Company may, at any time in the course of the employee's employment with the Company subject the employee to a medical examination by a Medical Practitioner appointed by the Company for this purpose not below the rank of Asst. Civil Surgeon or equivalent category, so as to ascertain the employee's mental and physical fitness to continue in the employment and if the employee is found to be medically unfit for employment, the Company is entitled to discharge the employee by issuance of such notice or pay in lieu thereof.

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12.9. Upon termination of employment of the Employee under this Employment Agreement in any manner whatsoever, the Employee shall forthwith return to the Company or its Client respectively all documents, papers, equipment, security keys, books, laptop computers, mobile phones, effects, money, securities, records, computer disks and data in soft and hard copies and other properties belonging to the Company including any or all Confidential Matter in possession of the Employee. In the event of failure to return to the Company any of its property/ assets/ accommodation referred above, the Employee would be deemed to have committed the offence of criminal breach of trust and the Company shall be free to proceed against the Employee in an appropriate forum, besides claiming liquidated damages for withholding Company property/ assets/ accommodation in an unauthorized and illegal manner. Acts of criminal breach of trust includes not returning the devices, equipment or documents in good condition (other than normal wear and tear due to use) OR deleting, erasing, redacting, causing to corrupt or corrupting any data or applications or operating systems or device identity.

13. INTELLECTUAL PROPERTY

13.1. If at any time during the employment with the Company, the Employee makes or discovers or participates in the making or discovery of any Intellectual Property relating to or capable of being used in the business of the Company or in the business of any Group Company, full details of such Intellectual Property shall be promptly and immediately be disclosed to the Company or such Group Company, and the Employee shall not use, disclose to any other person or exploit the same without the express prior written consent of the Company or such Group Company. Any such Intellectual Property shall belong absolutely and unconditionally to the Company or such Group Company and to the extent that some or all of the rights pertaining to the Intellectual Property do not vest automatically in the Company, the Employee agrees and hereby unconditionally assigns and waives the right or ownership to such Intellectual Property in favour of the Company (including, all the rights, title, interest and the right to amend, alter, copy or commercially exploit the same). The Employee shall provide to the Company with full details and information with regard thereto and shall, at the request of the Company or its Client apply to join with the Company or its Client in applying for registration of such Intellectual Property in India or in any other part of the world whatsoever as specified by the Company or such Group Company.

13.2. The Employee shall, at the Company's request and expense, do all such things and sign all documents or instruments that are necessary in the opinion of the Company to obtain, defend and enforce its rights in the Intellectual Property and in the meantime, hold all interest therein in trust for the Company. The Employee irrevocably and unconditionally appoints the Company to be his/her attorney in his/her name and on his/her behalf to execute any such document or instrument and generally to use his/her name for the purpose of giving the Company (or its nominee) the full benefit of the provisions of this Clause and in favour of any third party a certificate in writing signed by any Director or Secretary of the Company that any instrument or act falls within the authority hereby conferred shall be conclusive evidence that such is the case. The Employee hereby irrevocably waives all his/her rights pursuant to section 57 of the Copyright Act, 1957 in this regard. The Employee also irrevocably waives all his/her rights on any patents that he originates or is associated with during his/her term with the company.

Preview

13.3. The Employee hereby waives all rights, title and interest in any copyright work originated, conceived, written or made by him/her (either alone or with others) and he agrees not to claim that any treatment, exploitation or use of the said works infringe such moral rights (including but not limited to the right to be indemnified, the right to object to derogatory treatment and right against false attribution). The Employee shall, at all times, protect the Intellectual Property that belongs to the Company, whether or not created by him/her during the term of his/her employment.

13.4. The Employee hereby agrees and acknowledges that the salary and benefits paid to the Employee by the Company under this Employment Agreement includes consideration for assignment of all Intellectual Property developed by the Employee in accordance with Clause 13.1 above.

13.5. Rights and obligations under this Clause 13 shall continue in force after termination of employment of the Employee under this Employment Agreement with the Company in respect of the Intellectual Property and shall be binding upon the Employee and /or his/her personal representatives and/or his/her legal heirs.

14. OTHER RULES

14.1. The Employee shall adhere to and comply with the rules, regulations, policies and procedures of the Company that may be in force at the time of the employment, and also those that may be promulgated from time to time.

14.2. If at any time, it is found that the Employee had at the time of appointment or thereafter given false information regarding personal details including and as an example name, age, examination or academic percentage, qualifications, previous experience or any other, knowing it to be false, or had knowingly suppressed any such information, or any other material breach, the Company shall be entitled to terminate the employment without any notice or compensation in lieu of such notice. This list above is not deemed to be exhaustive. The Company is entitled to cause a background verification of the employee for this purpose either by themselves or through any external agency and the employee hereby consents to the same.

14.3. All enquiries seeking information or comment received from media houses including but not limited to newspapers, magazines, television, and/or social media publications, representation at events offline or online, or interviews should be directed to the management of the company. The Employee is not allowed to speak directly with any media house or provide company information including pictures, videos, screenshots, etc directly or indirectly.

15. NON-COMPETITION AND NON-SOLICITATION

15.1. The employee affirms and that he/she is aware of his/her obligations under this agreement. The employee duly affirms and covenants that he/she shall report any

Preview

unsolicited approaches from the restricted clients, to the Company Management. Non-Compliance with this clause will be treated as a material breach of the employment agreement between the employee and the Company.

15.2. The employee agrees and affirms that during the tenure with the company shall from time to time confirm the existence and knowledge of the Restricted Customer of the Company.

15.3. The Employee shall not, without the prior approval of the Company, directly or indirectly, during the period of his/her employment with the Company and for a period of @NonSolBEmpTen@ months after the date when the Employee ceases to be employed with the Company either by way of termination of his/her employment by the Company under this Employment Agreement or by way of resignation by the Employee or otherwise, intend to or accept employment or do or engage whether for gain or otherwise, as an employee or as a consultant, directly or indirectly in any capacity, intend or have any business dealings with any Restricted Customer or canvass, solicit or entice away or endeavour to canvass, solicit or entice away from the Company or any Group Company any business of any Restricted Customer or any client of the Company.

15.4. The Employee shall not, directly or indirectly, during the period of his/her employment with the Company and for a period of @NonSolBEmpTen@ months after the date when the Employee ceases to be employed with the Company either by way of termination of his/her employment by the Company under this Employment Agreement or by way of resignation by the Employee or otherwise, offer employment (including but not limited to consultancy assignments, place of profit schemes, ad hoc jobs or work) to or otherwise endeavour to offer employment (including but not limited to consultancy assignments, goods, services, place of profit schemes, ad hoc jobs or work) or entice away any Restricted Employee from the Company or any Group Company;

15.5. The Employee shall not, directly or indirectly, during the period of his/her employment with the Company and for a period of @NONCOMP@ months after the date when the Employee ceases to be employed with the Company either by way of termination of his/her employment by the Company under this Employment Agreement or by way of resignation by the Employee or otherwise, canvass, solicit or approach or cause to be canvassed, solicited or approached any person who was a supplier of goods or services to the Company with whom the Employee had business dealings on behalf of the Company or any Group Company or not, with a view to persuading such supplier to reduce or cease its supplies to the Company or any Group Company;

15.6. During the period of employment with the Company the employee shall for a period of @NonSolBEmpTen@ months after the date when the Employee ceases to be employed with the Company either by way of termination of his/her employment by the Company under this Employment Agreement or by way of resignation by the Employee or otherwise, the Employee shall not be, directly or indirectly, engaged, concerned or interested in any capacity whether as director, shareholder, principal, agent, partner, sole proprietor, consultant, contractor, employee or otherwise in any Restricted Business which is, wholly or partly, in competition with any business carried on by the Company or any Group Company, or restricted client or provide technical, commercial or professional advice to any Restricted Business that is, wholly or partly, in competition with any business carried on by the Company or

Preview

any Group Company;

15.7. The obligations imposed on the Employee under this Clause 15 extend to the Employee acting not only on his/her own account but also on behalf of any other firm, company or other person and shall apply whether the Employee acts directly or indirectly;

15.8. The restrictions under this Clause 15 are considered by the Parties to be reasonable in all the circumstances and for historical reasons are of vital importance for the Company and that the employee's undertakings in respect of these restrictions, should the Company, in its own discretion, elect to enforce these restrictions upon termination/resignation of employment of the Employee under this Employment Agreement, have been well compensated by the monthly remuneration and other benefits granted by the Company in favour of the Employee under the terms of this Employment Agreement. Further, it is agreed that if any such restrictions, by themselves, or taken together, shall be adjudged to go beyond what is reasonable in all circumstances for the protection of the legitimate interests of the Company or Group Company, would be adjudged reasonable if part or parts of the wording thereof were deleted, the relevant restriction or restrictions shall apply with some deletion(s) as may be necessary to make it or them valid and effective;

15.9. The restrictions under this Clause 15 shall not be considered as waived under any circumstances unless they are waived in writing by the Company. In case the Company desires to waive the restrictions under this Clause 15, the same will not be considered as waiver of any other rights and entitlements of the Company under this Agreement;

15.10. In the case of any breach of this Clause 15 or Clause 10 (Confidentiality) by the Employee, the Employee agrees to pay the Company, as per Annexure 1.

15.11. After termination of employment of the Employee under this Employment Agreement, the Employee shall not represent himself or permit himself to be held out as being, directly or indirectly, in any way connected with or interested in the business of the Company;

15.12. The Employee shall not during the period of his/her employment with the Company and during the period of @NonSolBEmpTen@ months after the date when the Employee ceases to be employed with the Company either by way of termination of his/her employment by the Company under this Employment Agreement or by way of resignation by the Employee or otherwise, directly or indirectly, without the Company’s prior written consent:

i. use or register or project in any way any name identical to or likely to be confused with a name (including a trade or company name) previously or presently being used by the Company other than as expressly agreed by the Parties in writing; or

ii. hold himself out as having any continuing connection with the Company to the disadvantage of the Company or in contravention of any terms and conditions of this Agreement other than as expressly agreed by the Parties in writing.

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15.13. The Employee shall not use (either personally or through an agent or otherwise, directly or indirectly) or authorize to be used, except as may be required for the purposes of or in connection with the business or his/her employment under this Agreement:

i. any information of a secret or confidential nature relating to the business or the affairs of the Company; or

ii. any trade name used by the Company, or any other name calculated or likely to be confused with such a trade name.

15.14. It is agreed that the remuneration package as CTC fixed for the employee during his/her tenure with the Company factors into account such amounts / compensation which requires the employee to comply with such "reasonable restraint" as specified in this agreement and as such, the employee is not entitled to any separate compensation for such restraint.

15.15. For the purpose of this Clause 15, references herein to acting "directly or indirectly" includes (without prejudice to the generality of the expression) references to acting alone or jointly with or by means of any other Person, firm or company of any kind or nature.

15.16. The intention of pre liquidated damages for breach of Clause 15 or Clause 10 is to seek relief for breaches which are core to the service contracts obligations or well being of the company or its other employees. These clauses as above seek safety or protection of information, company's intellectual property or processes and service information pertaining to or revenues from a restricted client or amount invested in employees so enticed.

Preview

16. TIME TO BE DEVOTED TO EMPLOYMENT

16.1. During the period of his/her employment with the Company, the Employee:

i. shall devote all of his/her professional and business time, attention and energies to his/her duties and responsibilities as provided hereunder and not enter into and/ or engage in any other consulting, service or employment for any purpose in any manner, whatsoever;

ii. shall not hold any other professional, executive, managerial or directorial positions or responsibilities in or in relation to any entity other than the Company, without the prior written approval of the Board;

iii. acknowledges that his/her primary duties are to the Company and that he/she shall carry out and discharge to the best of his/her ability any work that may be entrusted to him/her by the management acting on behalf of the Company;

iv. agrees and undertakes that he/she shall not commence or carry on any business or trade except that which is authorized by the management;

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v. agrees and undertakes that any non-professional or non-business activities undertaken by the Employee (such as trading in listed securities) shall not adversely affect his/her ability to devote time and attention to his/her duties and responsibilities as provided hereunder and affairs of the Company; The employee shall not deal in the securities being financial products listed on any exchanges globally or in India by the company or its clients, without prior written consent of the company

vi. agrees and undertakes that he/she shall perform his/her obligations herein; and

vii. agrees and undertakes to do his/her utmost to promote and advance the business and interests as well as the reputation and welfare of the Company, its subsidiaries and group companies.

17. NOTICES

17.1. As an organization which is committed to minimum usage of printing / paper wherever possible, communications would be sent to the Employee to his/her personal e-mail and / or official e-mail wherever he/she have been allotted one; The Employee is required to share his/her current personal e-mail as also communicate as and when there is any change in his/her personal e-mail.

17.2. Any communication sent to the e-mail address of the Employee as is last available in the records of the Company will be treated as having communicated to the Employee and duly acknowledged by the Employee for the purpose of signification or as evidence.

17.3. The Employee shall, in writing, advise the Company, the address to which communications to the Employee shall be sent and the employee shall intimate any changes in such address in writing / mail, within three days of such change. Any communication sent to the Employee at such address as is available in the files of the Company shall be deemed to have been duly sent by the Company and received by Employee.

18. REPRESENTATION AND WARRANTIES

18.1. The Employee represents and warrants to the Company that:

i. He/She has fully understood this Employment Agreement and has had time to reflect on and consider the benefits and consequences of entering into this Agreement and has executed and delivered this Agreement as his/her free and voluntary act, after having determined that the provisions contained herein are of benefit to him/her, and that the duties and obligations imposed hereunder on him/her are fair and reasonable. The Employee has obtained independent legal advice in connection with the execution of this Agreement

ii. He/She during the course of his/her employment be from time to time be put into specialised training and reorientation sessions that are specific to

Preview

the company's operation in order to ensure efficient performance of the employee at all times. The employee affirms that such training both operations and technology-related reorientation involves economic costs and efforts to the company.

iii. He/She has the obligation to execute, deliver and perform the duties under this Employment Agreement.

iv. The execution and delivery of this Employment Agreement by him/her and the performance by him/her of his/her duties and obligations hereunder do not and shall not result in any breach of or constitute a default under and are not and will not be in conflict with or prohibited by any earlier employment agreement to which the Employee is a party or by which the Employee may be bound or by order of any authority and the obligations imposed on him/her hereunder are fair and reasonable and will not prevent him/her from earning a comparable livelihood following the termination of his/her employment with the Company;

v. He/She is a law-abiding citizen and is not in violation of any laws and/or does not have actions or proceedings, civil or criminal, pending against or instituted by him/her in India or anywhere else in the world which may, in any manner, affect her ability to perform or the performance of his/her obligations hereunder and he hereby declares, acknowledges and confirms that the Company has the right and is authorised to conduct searches to confirm non-pendency of civil or criminal actions/proceedings/allegations against him/her;

vi. He/She is not subject to any written non-solicitation or non-competition agreement affecting his/her employment with the Company;

vii. save and except the provisions contained herein, the Employee is not subject to any written confidentiality or non-disclosure agreement affecting [his/ her] employment with the Company;

viii. He/She has not brought any trade secrets, confidential business information, documents, or other personal property of a prior employer; and

ix. He/She is not in conflict with the provisions of any agreement or instrument to which he is a party and is bound by it.

x. He/She has not suffered any conviction / penalty for any regulatory offences or offences under the Indian Penal Code, save any petty offences or that he has not been named in any complaint with the regulatory authorities for an offence related to securities / funds / accounting and audit services and that he has revealed the true and correct information in the application / resume so submitted by him/her.

xi. He/She permits the company to carry out a background check on him/her and authorises the company to speak to the companies that he was employed with earlier or with such other people as may be required for the purpose of determining whether he is a fit and proper person to be employed by the company as per the Annexure 2.

xii. He/She permits the company to share details of his/her work and performance in the company with other employers who may ask for the said details in future. There is no time bar to this clause.

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xiii. He/She permits the company to use his/her photographs, visuals, videographs and statements in the media campaigns, whether they be in print or social media, of the company.

xiv. He/She confirms that he is a citizen of India

19. **ENTIRE AGREEMENT**

This Employment Agreement including all appendices annexed, represents the entire agreement of the parties and it supersedes all prior statements, discussions and understandings. Any waiver, modification or amendment of any provision of this Employment Agreement shall be effective only if in writing and signed by the authorized representatives of both parties.

20. **SEVERABILITY**

If any term, provision, covenant or condition of this Employment Agreement is held by a court of competent jurisdiction to be invalid, void or unenforceable, the remainder of the provisions hereof shall remain in full force and effect and shall in no way be affected, impaired or invalidated.

21. **NO WAIVER, CUMULATIVE REMEDIES**

21.1. The failure of either party to insist, in any one or more instances, upon the performance of any of the terms, covenants, or conditions of this Employment Agreement or to exercise any right hereunder, shall not be construed as a waiver or relinquishment of the future performance of any rights and the obligations of the party with respect to such future performance shall continue in full force and effect. All remedies provided for in this Employment Agreement shall be cumulative and in addition to and not in lieu of any other remedies available to either party at law, in equity or otherwise.

22. **SURVIVAL TERM**

22.1. Notwithstanding any other provision of this Agreement, the terms, conditions and warranties contained in this Employment Agreement that by their sense and context are intended to survive the termination of employment of the Employee under this Employment Agreement or expiration or termination of this Employment Agreement shall so survive, including, without limitation, the provisions of Clause 10 (Confidentiality), Clause 12 (Termination / Resignation), Clause 13 (Intellectual Property), Clause 15 (Non-competition and non- Solicitation), Clause 17 (Notices), Clause 18 (Representations and Warranties), Clause 19 (Entire Agreement), this Clause 22, Clause 23 (Arbitration & Jurisdiction), Clause 24 (Governing Law).

23. **ARBITRATION & JURISDICTION**

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23.1. In the case of any dispute or matters of difference arising herein between the parties hereto as the construction of these presents or application thereof or as to any other matter or thing arising out of these presents or in the course of employment of @EMPLOYEENAME@ (and not herein expressly provided for) such dispute or matters of difference shall be referred to a Sole Arbitrator appointed by the Company or at Nani Palkhivala Arbitration Centre at Chennai The venue of the arbitration will be as per location specified in Annexure 1 and the language of the arbitration shall be English. The decision of the sole arbitrator shall be final and binding on the parties. The provisions of the Arbitration and Conciliation Act, 1996, or any modification thereof for the time being in force shall apply to such arbitration.

23.2. The Laws of @GOVLAWCONTRY@ governs this Employment Agreement and the Courts of competent jurisdiction is as per Annexure 1 alone as agreed by both the parties.

24. **GOVERNING LAW**

24.1. The Employment Agreement is governed and shall be constructed in accordance with The Laws of @GOVLAWCONTRY@.

25. **COUNTERPARTS**

This Employment Agreement may be executed simultaneously in several counterparts each of which shall be deemed to be an original but all of which shall constitute the same instrument

26. READ & UNDERSTOOD

Each party acknowledges that (i) they have carefully understood all the provisions of this agreement, (ii) and had the assistance of legal counsel of them choosing (and such otherprofessionals and advisors as it has deemed necessary) in the review and execution hereof, (iii) the meaning and effect of the various terms and provision hereof have been fully explained to them by such counsel, (iv) and have conducted such investigation, review and analysis as it has deemed necessary to understand the provisions of this Agreement and the transactions contemplated hereby, and (v) each of them has executed this Agreement of their own free will.

IN WITNESS WHEREOF the parties have put their hands the day and year first hereinabove written.

Signed for and on behalf of

@EMPLOYERNAME@

Preview

By the hands of **@NeOfTeAdSyOfTeEr@**

Duly authorized in that behalf in the presence of

@EMPLOYEEWITNESS@

Signed by the within named **@EMPLOYEENAME@**

In the presence of **@P1WITNAME@**

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ANNEXURE 1

Name of the Employee: **@EMPLOYEENAME@**

Employee Code: **@EMPCODE@**

Designation of the Employee: **@EMPLOYEEDEISG@**

Date of Joining: **@DOJ@**

Probation Period: **@PROBPERIOD@**

Reporting Officer: **@REPORTOFF@**

Duties and Functions/ Job Description/ Responsibilities: **@JOBDESC@**

Gross Salary: For the services rendered by the Employee in accordance with this Employment Agreement, the Company shall pay an Gross or aggregate amount/salary as detailed below @EMOLMENTSTRUCT@ per annum from the Effective Date and which is worked out on a CTC basis (cost to company) and which is subject to deduction of statutory dues like Professional Tax, Provident Fund, ESIC, Income Tax, etc. as applicable.

The breakup of the CTC of the employee is as follows:

@BpOfTeCCOfTeEe@

Notice Period for termination of employment: **@NOTPERD@**

Penalty for Breach: The higher of (i) @BREACHPENALTY@ or such higher sum as may be determined as damages by the Company per breach or threatened or intended breach or (ii) value of the contract or business taken away by the Employee for each instances, from the Restricted Customer or for the Restricted Business for which the Employee has generated lead during his course of employment with the Company and for which the Company was to get the business, deal or contract, or (iii) If the action or breach or value of the contract of business take away by the Employee is not quantifiable, a pre-estimated liquidated damages as enunciated in 15.9.(i) as agreed pre- estimated liquidated damages for each instance of breach of this Clause 15 and or clause 10 or (iv) a maximum of two years' salary paid by the Company to the Restricted Employee, if he has offered employment to or endeavour to entice away from the Company or any Group Company any Restricted Employee. For all such action under clause 15 and clause 10, a pre-estimated liquidated damages as enunciated shall become immediately payable and shall have the same effect as a promissory amount becoming due. In addition to the Company may at its sole discretion, be entitled to apply for preventive interim injunction to enforce the terms of this Employment Agreement in addition to any other remedy. The Parties agree that the quantum and amount of the liquidated damages stipulated herein, is a genuine and reasonable pre-estimate of the compensation the Company would be entitled to onan account of such breach. The Company may, without prejudice to any other method of recovery, deduct the amount of such damages from any monies in his hands, dueor which may become due to the Employee. The payment or deduction of such damages shall not relieve the Employee from his obligation and liabilities under the Agreement. In the event that the Company is affected by any breach of this Employment Agreement on the part of the Employee under this Clause, and the Company is able to prove that the damages so sustained, including indirect and consequential damages, are greater than the above-mentioned liquidated damages, then the Company, acting on its own behalf, shall be free to claim additional damages;

Court Jurisdiction: @CITYJURI@, @CONTJURI@

Location of Arbitration Proceedings: @SEAT_ARBITRATION_CITY@, @SEAT_ARBITRATION_COUNTRY@

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ANNEXURE 2

AUTHORIZATION NOTE

To @EMPLOYERNAME@

I authorise BASIZ INFORMATION TECHONOLGY SERVICES PVT LTD, and its retained third parties to conduct investigative Employment verification and obtain my Personal Background Records in connection with my application for employment and the information provided therein. The employment verification report may include, inter alia, information regarding my character, general reputation, personal characteristics, education background (authentication of acquired or pursuing Degrees/Diplomas), employment history; credit history; bank account confirmation, Aadhar card confirmation, passport details confirmation, court records, including criminal verification records as permitted by law; Indian Income Tax Permanent Account Number verification; fingerprint verification, health related records, address verification - this may include validation of earlier places of residence and work, references from professional and personal associates as maybe applicable and any other checks including social media in public domain as found relevant by BASIZ INFORMATION TECHONOLGY SERVICES PVT LTD,

I further understand and agree that the employment verification report may be obtained at any time and any number of times as may be necessary before, during or post my employment and which is necessary and expedient, considering the nature of the business of BITS.

I provide my consent to the company and the third party agencies hired by it for the processing of any personal information obtained for the purpose of verification and call me in case any further information is required. I understand that some or all of the information I have provided in this application form or that may be obtained through various sources during the process of the verification may be held as digitized or physical records for a period and for such use as may be permitted under the applicable laws. I hereby confirm that I have no objection to all previous employers, educational institutions, consumer reporting agencies and or entities having information about me to provide such information to BASIZ INFORMATION TECHONOLGY SERVICES PVT LTD, or to any other third parties retained by them for the purpose.I understand that the continuance of the employment or the offer of employment is contingent upon the outcome of the background check conducted on me. The proof of Identity enclosed and self attested for reference or any copy of this instrument bearing my signature shall be equally legally valid as the original. All the information furnished by me in the Background Verification Form is true to the best of my knowledge.

Signature:@EMPSIGN@

Name: @EMPLOYEENAME@

Date: @SIGNDATE@

Place: @PLOFEXE@

Note:It is mandatory to duly sign the form on the space provided above or else the application form would be rejected.

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NON-DISCLOSURE AND NON-CIRCUMVENTION AGREEMENT

This Non-Disclosure and Non-Circumvention Agreement (the “NDNCA” or the “Agreement”) is entered on @AGREEMENTDATE@ , by and between (individually hereinafter the “Party” and collectively hereinafter the “Parties”):

@EMPLOYERNAME@ (Company Identification Number: @P1CINNO@) issued by the Registrar of Companies, Chennai, India, a company incorporated in Chennai, India, and having its registered office at @P1EMPLOYERADD@ hereinafter referred to as the "Company” (which expression shall, unless it be repugnant to the context or meaning thereof, be deemed to mean and include its successors and permitted assigns, as the case may be) of the FIRST PART, (defined as the “First Party”) represented by @NeOfTeAdSyOfTeEr@, @DnOfTeAdSyOfTeEr@;

And

@EMPLOYEENAME@, son/daughter of Mr. @FsNeOfTeEe@, residing at @P2EMPLOYEEADD@ having Passport / Aadhaar Number @EMPPNo@ issued by @PtNrIdBy@, hereinafter referred to as “Employee/ Second Party” (which expression shall, unless it be repugnant to the context or meaning thereof, be deemed to mean and include Employees successors and permitted assigns, as the case may be) of the SECOND PART, (defined as the “Employee”/”Second Party”) represented by

Preamble:

1. First Party is engaged in business of providing fund administration, fund accounting and management consulting services which includes, inter alia, Fund Accounting, Fund Administration, Taxation – USA, India, Singapore, Financial Statements Compilation, Outsourcing of Accounting and Book-Keeping, AML/KYC, Consulting, Feasibility Studies, Vendor/ Investor Due Diligence, and Middle Office Services.

2. Second Party is seeking to be employed with First Party and agrees to sign this document as a part of his employment contract. Second Party is aware that BITS is a well-established company of international repute holding a vast amount of intellectual property & proprietary/ client information. In the course of his employment, Second Party may have access to such data. Second Party also affirms that he is aware of the responsibilities that are cast on having access to confidential information and the penalties that may arise to his account in the event of a violation.

3. This Agreement covers the various aspects of information exchange and non-circumvention between the Parties.

NOW, therefore, the Parties agree as follows:

1. OBJECTIVES

   1.1. The main objectives sought from the signing of this NDNCA are to ensure total confidentiality of the information exchanged between the Parties.

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2. Agreements

2.1. Purpose: Second Party is seeking to be employed with First Party and agrees to sign this document as a part of his/her employment contract.

2.2. Confidential Information: The Confidential Information means any information disclosed by the Parties, either directly or indirectly, in writing, orally or by inspection of tangible objects (including without limitation concepts, ideas, documents, prototypes, samples, plant and equipment), which is designated as Confidential, Proprietary or some similar designation. Information communicated orally shall be considered Confidential Information if such information is designated as being confidential or proprietary at the time of disclosure and is evidenced in writing and confirmed to the Party receiving the information ("Receiving Party") as being Confidential Information within fifteen (15) days after the initial disclosure. Confidential Information shall not, however, include any information which (i) was publicly known and available in the public domain prior to the time of disclosure by the Party disclosing the information ("Disclosing Party"); (ii) becomes publicly known and available in the public domain after disclosure by the Disclosing Party through no action or inaction of the other Party; (iii) is in the possession of the Receiving Party at the time of disclosure by Disclosing Party; (iv) is independently developed by Receiving Party without use of or reference to the Disclosing Party's Confidential Information; (v) is received by a Party from a third party with the right to make that disclosure; (vi) is furnished to a third party by the Disclosing Party without restrictions similar to the terms hereof on the third party's right to use or disclose; (vii) is required by law to be disclosed by the Party, provided that the Party gives the Disclosing Party prompt written notice of such requirement, and where reasonably possible and unless prohibited by any such law or any competent enforcement authority, prior to such disclosure; or (viii) has been approved for use or disclosure by Disclosing Party.

2.3. Ownership of Confidential Information: All Confidential Information and all material items delivered by the Disclosing Party to the Receiving Party, remains the property of the Disclosing Party and no license or other rights in the Confidential Information are granted to the Receiving Party by this NDNCA or by the act of disclosure. No rights, obligations, representations or terms other than those expressly set forth herein are to be implied from this NDNCA. In particular, without limitation, no license is hereby granted directly or indirectly to any of the Parties or their respective employees

a. under any patent, trademark, trade secrets or copyright, or

b. to use the other Party's name, trade names, trademarks, service marks, logos or designs for any purpose, without the other Party's prior written permission.

2.4. Non-Use and Non-Disclosure: The Parties agree not to use any Confidential Information of the Disclosing Party for any purpose except to evaluate and engage in discussions concerning a business relationship between the Parties. All Parties agree not to disclose any Confidential Information of the other Party to third parties or to their employees, except to those employees, officers, directors, agents, potential co-investors or shareholders, and professional financial, audit, legal, and/or industry consultants or advisors (collectively "Representatives") who are required to have the information in order to evaluate or engage in discussions concerning the

Preview

Transaction.

2.5. Recipients' Obligations: The Parties expressly agree that the Receiving Party shall not use Confidential Information in the development of any products or services for its own account or for the account of a third party unless expressly agreed to by the Disclosing Party in writing. Further, the Parties agree not to use the Confidential Information for purposes other than that necessary to consider the possibility of entering into a business relationship or transaction between the Parties. The Receiving Party shall protect the Confidential Information by using the same degree of care, but no less than reasonable care, to prevent the unauthorized use, dissemination or publication of the Confidential Information as the Receiving Party uses to protect its own Confidential Information. The Receiving Party shall limit its internal disclosure of the Confidential Information to only those Representatives who have a need to know the information for the limited purpose of the Transaction. All the Parties agree that they will direct their Representatives to maintain the confidentiality of the Confidential Information. The obligation not to disclose shall not be affected by bankruptcy, receivership, assignment, attachment or seizure procedures, whether initiated by or against the Receiving Party, nor by the rejection of any Agreement between the Disclosing Party and Receiving Party, by a trustee of Receiving Party in bankruptcy, or by the Receiving Party as a debtor-in- possession or the equivalent of any of the foregoing under local law. Notwithstanding anything contained in this Agreement, the Receiving Party is allowed to disclose Confidential Information to the auditors and regulators and retain such information for compliance with internal and external audit and regulatory requirements.

2.6. Restrictions and Exceptions: The Parties agree to maintain the confidentiality of the Confidential Information and to prevent its unauthorized dissemination or use; provided, however, that this NDNCA shall impose no such obligations with respect to Confidential Information which is 1) publicly known or becomes publicly known through no unauthorized act of the Receiving Party, 2) known by the Receiving Party prior to the date of this NDNCA, which prior knowledge is evidenced in writing, 3) disclosed to the Receiving Party by a third party with the right to make that disclosure, or 4) independently developed by the Receiving Party without any use of or reliance upon the disclosed Confidential Information. In the event of a disclosure required pursuant to a requirement of a governmental agency or law, the Party seeking to disclose Confidential Information will provide to the Disclosing Party notice prior to such disclosure in order to afford the Disclosing Party a reasonable opportunity to file objections to the disclosure with the appropriate entity.

2.7. Maintenance of Confidentiality: All Parties agree that it shall take reasonable measures to protect the secrecy of and avoid disclosure of the Confidential Information of the Disclosing Party. Without limiting the foregoing, all Parties agree they shall take at least those measures that it employs to protect its own confidential information.

2.8. No Obligation: Nothing contained in this Agreement shall obligate any Party to proceed with any transaction between the Parties, and each Party reserves the right, in its sole discretion, to terminate the discussions contemplated by this Agreement concerning the business opportunity. This Agreement shall not be construed as a partnership, joint venture or other such arrangement. Nothing in this Agreement shall grant to any Party the right to make commitments of any kind for or on behalf of the other Party without the prior written consent of the other Party. Nothing in

Preview

this Agreement shall prevent any Party from entering into discussions with other third parties in relation to transactions of a similar nature.

2.9. Return of Materials: All documents and other tangible objects containing or representing Confidential Information which has been disclosed by any Party, or all copies thereof which are in the possession of the Receiving Party, shall be promptly returned to the Disclosing Party upon Disclosing Party's written request, except where allowed by the Agreement. Notwithstanding, anything contained in this Agreement the Receiving Party shall not be required to return or destroy any Confidential Information that is stored in any automatic electronic archiving or back-up system ("Electronic Information") where it is not reasonably practicable to retrieve or delete the same, provided that the Receiving Party shall maintain the confidentiality of such legal information, secondary information and Electronic Information in accordance with the terms of this Agreement.

2.10. No License: Nothing in this agreement is intended to grant any rights to any Party under any patent, mask, work right or copyright of the Disclosing Party, nor shall this Agreement grant any Party any rights in or to Confidential Information except as expressly set forth herein.

2.11. Non-Circumvention: Second Party agrees to the non-circumvention principle detailed below:

a. Second Party agrees to respect the business process and scopes of services discussed and agreed upon and not circumvent the other party by using, in any manner, any Confidential Information of the First Party to go directly to prospective clients and/or suppliers with whom the First Party is working.

b. Second Party agrees and understands that contacting or attempting to contact prospective clients or suppliers (either directly or through a third party) as immediately above stated for the purpose of entering into an agreement and/or relationship without the specific written permission of First Party will constitute an act of circumvention. It is further understood that if Second party violates any term of this Agreement, Second Party will indemnify First Party against any and all losses incurred by First Party and will be liable to the non-violating party for any losses incurred as a direct or indirect result of such circumvention.

c. The parties acknowledge and agree that money damages would not be a sufficient remedy for any breach of this Agreement and that First Party shall be entitled to specific performance and injunctive or other equitable relief specific to this Agreement as a remedy for any such breach. Such remedies shall not be deemed to be First Party's exclusive remedy for breach of this Agreement but shall be in addition to all other remedies that may be available at law or equity.

2.12. Miscellaneous: This Agreement shall be governed by and construed in accordance with the laws of India. All Parties shall endeavor to resolve any dispute that may arise between them in connection with the interpretation or performance of this Agreement amicably to the extent possible. If they are unable to resolve their dispute within 60 days from the date on which any Party informs the others that a dispute situation has arisen, the Parties shall refer the matter of dispute to arbitration in accordance with the Arbitration rules in India as per the location of arbitration

Preview

mentioned in Annexure-1. This document contains the entire Agreement between the Parties with respect to the subject matter hereof, and no Party shall have obligations, express or implied by law, with respect to trade secret or proprietary information of the Disclosing Party except as set forth herein. Any failure to enforce any provision of this Agreement shall not constitute a waiver thereof or of any other provision. This Agreement may not be amended, nor any obligation waived, except by a writing signed by all Parties hereto.

3. Execution

3.1. This NDNCA shall remain in effect for a period starting with the date of employment and shall continue for a period of 24 months from the date of cessation of employment, except the clauses pertaining to protection of confidential information and non-circumvention which shall survive the period of employment.

3.2. This Agreement and any amendment hereto may be executed in counterparts, each of which, when executed and delivered, shall be deemed an original and all of which taken together shall constitute one and the same instrument. This Agreement may be delivered by official facsimile or electronically by official email.

Preview

IN WITNESS WHEREOF, THEPARTIES HERETO HAVE AFFIXED THEIR SIGNATURES ONTO AND/OR EXECUTED THIS NDNCA ON THE DAY AND YEAR FIRST ABOVE WRITTEN.

For First Party		For Second Party	
Signature:	**@PARTY1SIGN@**	**Signature:**	@EMPSIGN@
Name:	@NeOfTeAdSyOfTeEr@	**Name:**	@EMPLOYEENAME@
Title:	@DnOfTeAdSyOfTeEr@	**Address:**	@P2EMPLOYEEADD@
Date	@SIGNDATE@	**Email:**	@EMPEREMAIL@
Company Stamp:		**Contact No.:**	@EeCtNr@
		Passport / Aadhaar No.:	@EMPPNo@
		Date:	@SIGNDATE@

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